



File No.: EXP202306651

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by THE BEE LOGISTICS, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated August 17, 2023, and based on the following

FACTS

FIRST: On August 17, 2023, the Director of the Spanish Agency for Data Protection in file EXP202306651 issued a resolution in the following terms,

“FIRST: TO IMPOSE on THE BEE LOGISTICS, S.L., with NIF B88640735, for an infringement of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR, a fine of €50,000 (FIFTY THOUSAND EUROS).

TO IMPOSE on THE BEE LOGISTICS, S.L., with NIF B88640735, for an infringement of Article 32 of the GDPR classified under Article 83.4 of the GDPR, a fine of €20,000 (TWENTY THOUSAND EUROS).”

Said resolution, which was notified to the appellant on August 28, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00272/2023, the following were recorded:

FIRST: It has been established in the file that THE BEE LOGISTICS was the company responsible for delivering the package to the claimant.

SECOND: It is recorded that the package sent was received by a person other than the intended recipient.

THIRD: It is recorded in the file that the personal data of the claimant, name and surname, as well as the postal address, were improperly exposed to a third party as a result of the receipt of the shipment of which they were the intended recipient, with THE BEE LOGISTICS being the company responsible for the delivery of the package.

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THIRD: The appellant submitted on September 18, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally arguing that “...it cannot assume a responsibility that, in any case, corresponds to the subcontractor, Mr. A.A.A., as the last link in the contractual chain, who was responsible for hiring the transporter who committed the infringement to carry out the transport and delivery of the package to the Claimant... As Enviaia itself described in its response to the AEPD, in each delivery in which Enviaia and THE BEE LOGISTICS have collaborated, there has been a contractual chain (whether through written or verbal agreements) that goes from the point of sale (client) to the messenger or transporter who delivers the orders.

Specifically, Enviaia explained in this document that the process of delivering the Claimant's package occurred as follows: the package traveled from the client's establishment (Carrefour) to the cargo agency FOURTH PARTY LOGISTICS, S.L. (Envialia) which subcontracted FOURTH PARTY SERVICES, S.L. (a company within the same network that maintains relations with ENVIALIA WORD, S.L.) for the provision of courier services, and that FOURTH PARTY SERVICES, S.L. subcontracted, in turn, to THE BEE LOGISTICS for the delivery of the packages.

Notwithstanding the above, and although the contractual chain proceeded as indicated, the truth is that there is a final participant missing that Envialia did not mention in its document and which is important to consider in order to conclusively and fairly determine who is responsible for the consequences of the messenger's malpractice.

Indeed, THE BEE LOGISTICS in turn subcontracted Mr. A.A.A., a collaborator with whom THE BEE LOGISTICS usually worked on a self-employed basis, and who had a number of transporters under his command for the distribution and delivery of the orders entrusted to him by both THE BEE LOGISTICS and other third agencies...”

FOURTH: Consequently, on October 13, 2023, a request was notified to the appellant to provide, within a period of 10 business days:

- The prior written authorization, specific or general, duly signed and dated, by which “FOURTH PARTY SERVICES, S.L.” allows THE BEE LOGISTICS, S.L. to resort to another data processor.
- The contract for the processing of personal data signed between THE BEE LOGISTICS, S.L. and Mr. A.A.A., duly signed and dated.
- The instructions given by THE BEE LOGISTICS, S.L. to Mr. A.A.A., duly signed and dated, to be followed in the delivery of goods to the home.

FIFTH: Within the granted period, the appellant submitted documentation and information regarding each of the mentioned points, with the following literal wording:

“FIRST. – Regarding the prior written authorization, specific or general, duly signed and dated, by which “FOURTH PARTY...

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“SERVICES, S.L.” allows THE BEE LOGISTICS, S.L. to resort to another data processor.

THE BEE LOGISTICS and FOURTH PARTY SERVICES do not have any type of signed written contract (neither for service provision nor for data processing), as FOURTH PARTY SERVICES already argued in its response to the notification of the initiation of sanctioning procedure dated June 14, 2023, so the commercial and professional relationship between both parties is governed by verbal agreements maintained between them since the beginning of the aforementioned relationship until the present...

SECOND. – Regarding the data processing agreement signed between THE BEE LOGISTICS, S.L. and Mr. A.A.A., duly signed and dated.

In relation to this point, we must indicate that the existing contract between Mr. A.A.A. and my client is also a verbal and not a written contract, so we cannot provide a signed contract between the parties as required...

THIRD. – Regarding the instructions given by THE BEE LOGISTICS, S.L. to Mr. A.A.A., duly signed and dated, to be followed in the home delivery of goods.

Since all communications exchanged in writing between Mr. A.A.A. and my client have been via WhatsApp, we hereby attach examples of screenshots of some of the conversations held between the parties through this channel whereby THE BEE LOGISTICS gives instructions...

LEGAL GROUNDS

I

Jurisdiction

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, we proceed to respond to them, in the order presented:

“ALLEGATIONS:

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FIRST: Regarding the responsibility of THE BEE LOGISTICS in the malpractice committed by the courier who delivered the package to a person not authorized by the Claimant.

As Enviaia itself described in its response to the AEPD, in each delivery in which Enviaia and THE BEE LOGISTICS have collaborated, there has been a contractual chain (whether through written or verbal agreements) that goes from the point of sale (client) to the courier or carrier who delivers the orders.

Specifically, Enviaia explained in this document that the process of delivering the Claimant's package occurred as follows: the package traveled from the client establishment (Carrefour) to the cargo agency FOURTH PARTY LOGISTICS, S.L. (Envialia) which subcontracted FOURTH PARTY SERVICES, S.L. (a company in the same network that maintains relationships with ENVIALIA WORLD, S.L.) for the provision of courier services, and that FOURTH PARTY SERVICES, S.L. in turn subcontracted THE BEE LOGISTICS for the delivery of the packages.

Notwithstanding the above, and although the contractual chain proceeded as indicated, the fact is that there is a final participant missing that Enviaia did not mention in its document and that is important to consider in order to conclude in a certain and fair manner who is responsible for the malpractice of the courier.

And it is that THE BEE LOGISTICS in turn subcontracted Mr. A.A.A., a collaborator with whom THE BEE LOGISTICS used to work as a freelancer, and who had a number of transporters under his command for the distribution and delivery of the orders entrusted to him by both THE BEE LOGISTICS and other third agencies.

Attached as DOCUMENT NO. 1 is invoice No. 000011 corresponding to the hiring by THE BEE LOGISTICS of the services of Mr. A.A.A. during the period in which the events subject to this claim took place (06/01/2022 - 06/29/2022).

As can be seen in the attached invoice, on June 29, 2022, the courier with number XXX hired by this subcontractor Mr. A.A.A. (that is, not hired by THE BEE LOGISTICS) was responsible for delivering the package to the address indicated by the Claimant.

In this regard, and in the interest of maximum transparency with the AEPD, we hereby provide screenshots of a WhatsApp conversation exchanged between THE BEE LOGISTICS and its subcontractor, Mr. A.A.A., in which the latter informs my client of the malpractice committed by his courier number XXX and where solutions are also proposed to compensate for what occurred:

Additionally, we attach the screenshot that Mr. A.A.A. provided to my client through the aforementioned WhatsApp conversation and in the

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which can be appreciated in the delivery record that the carrier made internally in the subcontractor's system with the data of the person to whom the package was delivered and the date and time of delivery:

Considering all the above, this party understands that the existence of this contractual relationship between THE BEE LOGISTICS and Mr. A.A.A. is absolutely justified and accredited, and that, in any case, the actions carried out by the carriers contracted by him are the responsibility of this subcontractor insofar as THE BEE LOGISTICS has no contact whatsoever nor the capacity to interact with any of them, being Mr. A.A.A. himself responsible for managing the orders with his workers on behalf of THE BEE LOGISTICS and for instructing them on how to proceed in each case.

In this regard, it is important to emphasize that THE BEE LOGISTICS underwent an internal process to adapt its internal policies to the current regulations on data protection, structuring internal security

measures, action protocols, and training processes for all its staff (including the carriers who are directly contracted by THE BEE LOGISTICS), aimed precisely at preventing security breaches caused by the commission of such data protection infringements that are so commonly found in the transport/courier sector.

This is why THE BEE LOGISTICS should not assume any responsibility for the actions committed by workers over whom it has no control and who depend on the guidelines and instructions of a third-party data controller (in this case, Mr. A.A.A.) external to THE BEE LOGISTICS.

The subcontracting of THE BEE LOGISTICS to Mr. A.A.A. for the provision of services does not exempt it from its responsibilities as the data controller.

In Article 4 of the GDPR, points 7 and 8 specify what is to be understood by data controller and data processor. Thus we have:

“7) ‘data controller’ or ‘controller’ means the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

8) ‘data processor’ or ‘processor’ means the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller;...”

In short, the data controller is the natural or legal person or public authority that decides on the processing of personal data, determining the purposes and means of such processing.

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By virtue of the principle of proactive responsibility, the data controller must apply technical and organizational measures to comply with and be able to demonstrate compliance, taking into account the risk involved in the processing of personal data.

For its part, the data processor is the natural or legal person, public authority, service, or other body that provides a service to the controller that involves the processing of personal data on behalf of the controller.

In this sense, the controller is the one who decides the "why" and the "how" regarding personal data, and the processor is the one who carries out the processing on behalf of the controller.

The role of the data processor in the GDPR is defined in Article 28, which establishes the requirements that must be met regarding data protection, highlighting, for the purposes of this case, its paragraph 4:

4. When a data processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 shall be imposed on this other processor, through a contract or other legal act established in accordance with Union or Member State law, in particular the provision of sufficient guarantees for the application of appropriate technical and organizational measures in such a way that the processing is in compliance with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully liable to the data controller for compliance with the obligations of the other processor. (...)

We must remember in this regard that these specific obligations may be supervised by data protection authorities, without prejudice to the oversight that may be carried out regarding compliance with the GDPR or the LOPDGDD by the controller or the data processor.

SECOND: Regarding the agreement reached between the carrier and the Claimant prior to the filing of the complaint by the latter before the AEPD. Mr. A.A.A. informed my client that his carrier had reached a transactional agreement with the Claimant, Ms. B.B.B., whereby the carrier committed to pay the value of the stolen package (that is, a total of €55), as can be seen in the screenshot provided below for the clarity of the AEPD:

Notwithstanding the above, THE BEE LOGISTICS is unaware of what exactly happened or the

agreement reached between the parties since the carrier was not required to report to my client but to his direct supervisor, the subcontractor of THE BEE LOGISTICS, Mr. A.A.A.

Therefore, the following circumstances must be taken into account:

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(i) That THE BEE LOGISTICS was unaware of the background of the disputed facts and only had the limited information provided by Mr. A.A.A., in his capacity as subcontractor and responsible for the infringing carrier;

(ii) That the matter had allegedly been resolved amicably between the carrier and the Claimant, as reported by Mr. A.A.A. to THE BEE LOGISTICS; and

(iii) That THE BEE LOGISTICS could have no control or visibility over the situation or the decisions or agreements that the carrier made unilaterally with the Claimant since he was under the supervision of Mr. A.A.A. and not under that of THE BEE LOGISTICS.

This is why the responsibility arising from the actions of the carrier should fall entirely on Mr. A.A.A., in his capacity as the responsible party for the carrier he hired for the delivery of this package.

In response to the above, we must refer to what was mentioned earlier regarding the role of the controller and processor of personal data, without assessing the relationship that may have taken place between Mr. A.A.A. and the Claimant.

THIRD: Regarding why THE BEE LOGISTICS did not submit a written statement of allegations to the AEPD in a timely manner in response to the initiation of proceedings.

THE BEE LOGISTICS had contracted a service provider, "Gestoría Gefirinet," which was responsible for receiving notifications that arrived in THE BEE LOGISTICS's mailbox and informing about any actions that, if applicable, should be carried out.

This company not only failed to inform my client, but one of the responsible parties of THE BEE LOGISTICS was the one who, proactively, accessed the business mailbox of THE BEE LOGISTICS on August 28, 2023, and found the notifications from the AEPD regarding the initiation of the procedure and the resolution of the procedure.

Subsequently, this responsible party communicated this situation to the Gestoría, requesting clarification regarding the aforementioned notifications, as can be seen in the screenshot provided below for the clarity of the AEPD:

It was then that both THE BEE LOGISTICS and the Gestoría realized that one of the notifications was regarding the opening of a sanctioning procedure against THE BEE LOGISTICS and that the other was already the resolution by which the AEPD imposed a fine of €70,000 on THE BEE LOGISTICS.

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As soon as they became aware of this situation, THE BEE LOGISTICS contacted Delvy Law, S.L. - hereinafter, "Delvy" - (the legal advisors who provided legal assistance for all matters related to data protection), so that we could respond in a timely manner, through a motion for reconsideration, at least to the resolution of the procedure. Consequently, it was the malpractice of the Gestoría Gefirinet that was the reason why THE BEE LOGISTICS could not submit a written statement of objections against the initiation resolution issued by the AEPD on June 14, 2023, within the 10-day period granted for that purpose, causing a terrible defenselessness to my client's interests, which has resulted in our inability to explain THE BEE LOGISTICS's position in this matter or to argue the absence of responsibility of THE BEE LOGISTICS regarding the disputed facts that are the subject of this procedure.

Regarding the alleged malpractice, this Data Protection Agency has nothing to say about it.

FOURTH: On the measures that THE BEE LOGISTICS is implementing in its internal structure to

prevent a situation like the one that occurred from happening again.

It is important to emphasize that THE BEE LOGISTICS has never proactively violated any law or regulation that could apply to it. An example of this is that since its foundation, it has never received any fines or warnings of any kind, and it is not its intention for this to change, which is why it is implementing (and will continue to implement) the necessary measures and solutions to be fully compliant with the GDPR. Some examples of the steps and actions that THE BEE LOGISTICS is currently implementing to comply with data protection regulations, both at the European and national levels, are detailed below:

- As a first step, it has decided to definitively discontinue the services of this provider "Gestoría Gefirinet," centralizing all notification reception and management services, along with legal advice, in Delvy, as well as initiating the process of registering Delvy as its DPO so that all matters related to data protection are under the protection and control of specialized professionals who help THE BEE LOGISTICS to be fully compliant with the GDPR.
- Training sessions have been organized for the month of November, which will be conducted by specialized data protection lawyers from Delvy, so that our employees and internal transporters are aware of their obligations in this area and how to act in each situation to avoid any type of security breach.
- Delvy has begun to review and, if there is no written contract, to draft contracts with suppliers and clients so that all contractual relationships of THE BEE LOGISTICS are subject to written conditions and obligations regarding data protection depending on the role that each party is to assume (data controller-processor-sub-processor).
- Delvy will review all documentation related to data protection (rights forms, activity logs, etc.) and, if necessary, will update it so that THE BEE LOGISTICS is fully adapted to the GDPR, paying special attention to reinforcing security measures and the actions of the responsible individuals or companies in the event of a security breach.

Regarding the measures implemented by THE BEE LOGISTICS, it should be mentioned that all security measures adopted to prevent incidents like the one that occurred fall within its obligations to comply with data protection regulations; since, as the data controller, it is obliged to apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk presented by the data processing.

However, this agency positively values the security measures adopted subsequently; although this does not negate the commission of the aforementioned infringements.

In relation to the documentation and information provided by the appellant, we must mention that the figure of the data processor in the GDPR is defined in the aforementioned Article 28, which establishes the requirements that must be met regarding data protection, in which it is expressly stated that:

"... If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully responsible to the data controller for compliance with the obligations of the other processor. (...)..."

III

Conclusion

Consequently, in the present motion for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In light of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the motion for reconsideration filed by THE BEE LOGISTICS, S.L. against the resolution of this Spanish Data Protection Agency issued on August 17, 2023, in file EXP202306651.

SECOND: TO NOTIFY this resolution to THE BEE LOGISTICS, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on Administrative Procedure.

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Common of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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